

IN THE _____ COURT OF _____, ARKANSAS
_____ DIVISION

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STATE OF ARKANSAS

PLAINTIFF

vs. Case No. _____

DEFENDANT

(First, Middle and Last name)

**PETITION TO SEAL RECORDS OF NOLLE PROSEQUI, DISMISSALS,
JUDGMENTS OF ACQUITTAL, AND CHARGES NOT FILED UNDER
ACT 1460 OF 2013; A.C.A.16-90-1401, Et. Seq.**

Comes the Defendant and for his/her petition to seal the record states:

1. The Defendant was arrested on the _____ day of _____,
_____, and charged with the offense(s) of:

_____ in violation of A.C.A. § _____
2. ☐ An Order of Nolle Prosequi was entered in this case more than one (1) year ago and the prosecuting attorney or the city attorney has not refiled said charges against the Defendant; or
☐ An Order of Dismissal has been entered in this case; or
☐ A Judgment of Acquittal was entered in this case and the acquittal was not for reason of mental disease or defect under A.C.A. § 5-2-301, et seq.; or
☐ The prosecuting attorney or city attorney did not file charges in this case.
3. The Defendant has paid all filing fees required to be paid with the filing of this Petition mandated by A.C.A. § 16-90-1419.

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4. ☐ Defendant has no pending felony charges in any state or federal court;
or
☐ Defendant has one or more pending felony charges in state or federal
court and the status of that/those charges is/are as follows:

5. Defendant ☐ **IS** or ☐ **IS NOT** required to register as a sex offender under the Sex Offender Registration Act of 1997 (A.C.A. § 12-12-901, et seq)
6. As evidenced by my signature below, the above information is true and correct to the best of Defendant's knowledge.

WHEREFORE, the Defendant, _____, prays this Court enter an Order Sealing the above referenced Nolle Prosequi, Dismissal, Judgement of Acquittal, or Charges Not Filed pursuant to A.C.A. §16-90-1410.

City: _____
State: _____ Zip code: _____
<i>Defendant's Address</i>

Defendant's Signature

Date

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VERIFICATION

STATE OF ARKANSAS

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COUNTY OF _____

Comes the Petitioner, _____, under oath and states that the foregoing Petition is true and correct to the best of my knowledge and belief.

Petitioner

Subscribed and sworn to before me on this _____,
day of

_____, 20____.

(Seal)

Notary Public

My Commission expires: _____

**THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND
NATIONAL RECORD SYSTEMS**

Race _____ Arrest Tracking Number _____

Sex _____ SID No. _____

DOB _____ FBI No. (if known) _____

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Certificate of Service

I, _____, do hereby certify that a true and correct copy of the foregoing Petition has been provided to either the Prosecuting Attorney for the County in which the Petition has been filed or to the City Attorney depending on which office prosecuted the case and the arresting agency by placing a copy of this Petition in the United States mail, postage prepaid, to said office or by hand delivering a copy to said office.

Defendant or Defendant's Attorney

Date